

TENTATIVE RULING(S) FOR August 11, 2026

Department S37 – Judge Winston Keh

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If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2505394

Haaga v. US Defenders

TENTATIVE RULING(S):

Default History and Set Aside. On May 5, 2025, Defendant US-Defenders' default was entered. This was followed by default judgments entered on June 2 and July 2. On September 2, US-Defenders moved to set aside the default judgment under Code of Civil Procedure section 473, subdivision (b). Although the title sought to set aside the default judgment, the body of the motion requested for the set aside of the "default and any judgment thereon taken." (Motion at p. 3:17-19.) On November 20, the Court's granted the motion to set aside the default judgment. Thereafter, on December 11, the Court signed an Order setting aside the July 2 judgment.

Based on the granting of the set aside, Defendant US-Defenders filed its Answer on November 20.

Plaintiff Haaga now moves to strike the Answer because Defendant US-Defenders' default remains, and therefore, it lacks standing to file an Answer. Defendant US-Defender opposes. Plaintiff Haaga replies.

Analysis

Procedurally, Plaintiff's Counsel attests to sending an email with Defense Counsel responding that Defendant would not be withdrawing its Answer. (Soffer Decl. at ¶19.)

This is not a code-compliant meet and confer. The meet and confer needed to be in person, by telephone, or by teleconference. Nonetheless, in this case, there is no point in continuing the hearing to achieve a code-compliant meet and confer because it would be a futile effort. The ultimate issue here is going to have to be resolved by the Court, so it be a waste of time to continue the motion.

Substantively, Plaintiff is correct that a party in default cannot participate in the litigation until his default is set aside. (*Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.* (1984) 155 Cal.App.3d 381, 385-86.) This would necessarily include filing an Answer.

Also, on the face of the November 20 Minute Order and December 11 Order, the Court only set aside the default judgment filed on July 2. However, although Defendant's Set Aside Motion was titled seeking to set aside the default judgment, as noted above, the substantive relief pled within the points and authorities was to set aside the default and any judgment thereon. Furthermore, the predicate basis to set aside the default judgment would equally apply to the default itself. Finally, limiting the set aside to the default judgment, as Plaintiff contends, is illogical because to do so does not truly provide the substantive relief US-Defenders was seeking by its set aside motion, i.e., the ability to respond to the litigation.

Ultimately, as the motion did request for the relief to set aside the default, despite the title of the motion, the Court should hold the intent behind the motion and order was to set aside the default and all judgments thereon and make clear that the default entered on May 5 is set aside. Therefore, the Court DENIES striking the Answer.

RULING

For the reasons stated above, the Court DENIES Plaintiff Haaga's Motion to Strike Defendant US-Defenders' Answer as the Court holds that the intent behind the November 20, 2025, ruling was to set aside the default and default judgment because it was part of the relief prayed from in the moving papers.